

SPR-097146 Estate of Richard James Badolato

County: sonoma

Division: Probate

Hearing date: 2026-08-21

Motion: Account & Report

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Tentative Ruling: NO APPEARANCES REQUIRED. Based on the updates filed by administrator on July 29, 2026 and August 17, 2026, the Court understands that the objections of SureTec Insurance Company, and Inheritance Funding Company, have been resolved consistent with the revised proposed order submitted with the August 17, 2026 update. The Court notes any objection by Jennifer Baldolato is waived, not having been filed and served by July 20, 2026. The only remaining issue for resolution is the measure of double damages.

On that issue, the Court has considered the case of Estate of Ashlock, (2020) 45 Cal.App.5th 1066, but it is the Court's view is that the reasoning of Conservatorship of Ribal, (2019) 31 Cal.App.5th 519, is more persuasive. The two sections at issue operate for separate purposes. The reference to "property recovered" in Probate Code section 859 is merely a measure for setting the amount of liability. Otherwise, total liability would depend on whether there was property actually recovered under Probate Code section 856 or not, which would result in inconsistency in applying the statutory scheme. It would also make superfluous the additional categories of property concealed or disposed of, which could not be recovered. This Court therefore disagrees that the penalties available under the Probate Code operate as argued in Ashlock. As an example, if a respondent was found to have wrongfully taken in bad faith a \$10,000 bottle of wine, if the bottle is recovered a prevailing party would be entitled to a judgment valued at \$30,000 (the bottle and twice its value) under the reasoning of Ashlock. However, if the wine has been consumed and cannot be recovered, a strict reading of Ashlock would mean that Probate Code section 859 does not apply, as there was no property recovered. But if the "property recovered" is merely a watermark by which to set the basis for imposing double liability, recovery of the wine is irrelevant and double liability would be liability in the amount of \$20,000. If the wine is recovered, \$10,000 of that liability is satisfied, and yet a penalty remains.

The Court orders that "double damages" be calculated consistent with the case of Conservatorship of Ribal and that a revised proposed order be submitted. Otherwise, the petition, as modified by this ruling and the proposed order lodged August 14, 2026, is APPROVED.